

Vijaya Bhusan v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 26 July 2016 · Writ-C No. 34107 of 2016 · **Writ disposed; licensee to decide a complete clause 4.4 application in accordance with law.**

HEADNOTE

A fresh connection cannot be compelled in writ unless the applicant satisfies clause 4.4 of the U.P. Electricity Supply Code, 2005. Where the form was prima facie incomplete (licensee having refused it for want of landlord no-objection), the Court only directed the authority to consider a compliant application in accordance with law.

FACTUAL SUMMARY

Vijaya Bhusan approached the Allahabad High Court alleging that the Executive Engineer, Vidyut Vitaran Khand, Bareilly, was not accepting his application form for grant of a new electricity connection. The reason given was the absence of a no-objection from the landlord. He placed the form on the writ record and sought a mandamus that the distribution licensee receive and process the application for a fresh connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

new-connection-application

HOLDING

The U.P. Electricity Supply Code, 2005, read with the Electricity Act, 2003, is a self-contained code. An applicant for a fresh electricity connection must fulfill the requirements of clause 4.4. Where the form, on a prima facie view, does not satisfy those prerequisites, the writ court will not compel acceptance of the application; the licensee is only to look into the claim and decide it in accordance with law if a complete clause 4.4 application is submitted. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER LANDLORD NO-OBJECTION IS INDISPENSABLE UNDER CLAUSE 4.4, OR WHETHER OCCUPANCY PLUS INDEMNITY WOULD SUFFICE

The Court recorded the licensee's landlord-NOC objection and a prima facie incomplete form, but remitted consideration without construing clause 4.4's occupancy or indemnity path. ¶ 1